
2:00 PM LINE 11

25-CIV-09349

MATILDE IBARRA, ET AL VS. JOSE MANUEL PINON, ET AL

MATILDE IBARRA
JOSE MANUEL PINON

JAMESON ULLMAN
JOSEPH A. LEPERA

DEFENDANTS JOSE MANUEL PINON AND JEIS PINON'S MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT, IF ENTERED

TENTATIVE RULING:

Defendants Jose Manuel Pinon's and Jeis Pinon's motion for an order setting aside the default judgment entered on February 13, 2026, is **GRANTED**.

Defendants are **ORDERED TO FILE THEIR ANSWER** within ten (10) days of notice of entry of the formal order.

A. Background

This is a landlord-tenant action arising from plaintiffs' tenancy at property owned by defendants. Plaintiffs filed their complaint on November 21, 2025.

Defendants request the court vacate the entry of default because the delay was caused by their efforts to find and retain counsel. While doing so, they sought an extension of time in which to file their answer from plaintiffs' counsel. Because the length of time requested plaintiffs' counsel refused to stipulate and suggested defendants file a motion which plaintiffs would not oppose. Defendants did in fact file a motion for an extension of time but it was ultimately denied for their failure to serve the motion upon plaintiffs. They were unaware of the denial and its basis until after plaintiff moved for entry of default judgment for failing to file an answer.

Default judgment was entered February 13, 2026. Defendants retained counsel on or around March 13, 2026. On the date they were hired defense counsel requested plaintiffs stipulate to setting aside the default but plaintiffs refused. The instant motion to vacate the default was filed shortly thereafter, on March 27, 2026.

Defendants request the court vacate the default judgment pursuant to Code of Civil Procedure, section 473, subdivision (b) on the basis of surprise and excusable neglect. Plaintiffs oppose the motion, contending they will be prejudiced by enduring further tactical delays caused by defendants' disregard for judicial deadlines.

B. Legal Standard

Code of Civil Procedure, section 473, subdivision (b) provides in pertinent part that a court "may, upon any terms as may be just, relieve a party . . . from a judgment, dismissal, order,

or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).) Under this statute, “a court may relieve a party from a default or default judgment due to ‘mistake, inadvertence, surprise, or excusable neglect’ if the party files an application for relief within six months from the date of the default.” (*Ibid*; *Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 28.)

C. Discussion

Defendants request the Court vacate the default judgment entered on February 13 because default judgment was entered due to their mistake and excusable neglect. To wit, they attempted to file a motion for an extension of time to answer the complaint while unrepresented and in so doing, made a fatal procedural error in failing to serve it upon plaintiffs.

Excusable neglect is “neglect that might have been the act or omission of a reasonably prudent person under the same or similar circumstances.” (*Barragan v. County of Los Angeles* (2010) 184 Cal.App.4th 1373, 1382-1383, citations omitted.) “It ‘is not shown by the mere failure to discover a fact until it is too late; the party seeking relief must establish that in the exercise of reasonable diligence, he failed to discover it.’” (*Id.*, at p. 1383, citations omitted.) Based upon a review of the declarations submitted by both parties and their counsel, it appears that defendants made reasonable efforts to respond. Plaintiffs contend they will be prejudiced if the court grants the motion but do not state how. Furthermore, the complaint was filed late November 2025 and the instant motion was filed only four months later, in the end of March 2026. Accordingly, defendants’ error in not timely answering was excusable and the motion is **GRANTED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the “prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 12

26-UDL-00556

CARLOTTA CT., LLC VS. BRITTANY L. PICKETT ROSE

CARLOTTA CT., LLC
BRITTANY L. PICKETT ROSE

STEVEN T. NAUMCHIK

DEMURRER TO COMPLAINT

TENTATIVE RULING:

Defendant Brittany Pickett-Rose's Demurrer to Complaint is **CONTINUED** to 2:00 p.m. on September 16, 2026 in Department 28, Courtroom I, 800 North Humboldt Street, San Mateo, California.

As a preliminary matter, notice of demurer was purportedly served by mail. "Service by mail must be made in strict compliance with the mandates of [Code of Civil Procedure] sections 1013 and 1013a." (*Aquino v. Superior Court* (2021) 73 Cal.App.5th 104, 111.) The proof of service of the demurrer does not set forth the exact title of the documents served and merely states that the papers were "served ... by mailing a copy" (see Demurrer, filed Aug. 21, 2026 at p. 11, ll. 11–12) without "also showing that the envelope was sealed and deposited in the mail with the postage thereon fully prepaid." (Code Civ. Proc., § 1013a, subds. (b), (c); see *id.*, § 1013, subd. (a) [paper must be mailed "in a sealed envelope, with postage paid"].)

Notwithstanding the notice defects, plaintiff opposed the demurrer. The court therefore rules as follows.

First, a complaint for unlawful detainer must "[s]tate specifically the method used to serve the defendant with the notice or notices of termination upon which the complaint is based." (Code Civ. Proc., § 1166, subd. (a)(5).) "This requirement may be satisfied ... by attaching a proof of service of the notice or notices of termination served on the defendant[.]" which the Complaint does here. (*Ibid.*; see May 11, 2026 Complaint, at p. 2, ll. 15–18, exh. A, at p. 3.) However, the proof of service does not show that the sixty-day notice on which the Complaint is based was served, instead referring to an unknown notice to pay rent or quit. (Complaint, exh. A, at p. 3.) Accordingly, while the Complaint alleges that "plaintiff caused to be served upon the defendant a written notice terminating their tenancy and requiring defendant to deliver up possession of said premises on or before May 1, 2026," the Complaint fails to state specifically how that notice was served and therefore fails to state a cause of action.

Second, "after a tenant has continuously and lawfully occupied a residential real property for 12 months, the owner of the residential real property shall not terminate a tenancy without just cause, which shall be stated in the written notice to terminate tenancy." (Civ. Code, § 1946.2, subd. (a).) The Complaint admits that the tenancy began in 2024 (Complaint, at p. 2, ll. 11–13), and thus a statement of just cause in the notice is required unless the Complaint adequately pleads an exemption from the statutory requirement.

The Complaint attempts to rely on the exemption provided by subdivision (e)(8) of Civil Code, section 1946.2, which provides that residential real property alienable separate from the title to any other dwelling unit is exempt provided that (1) the owner is not a real estate investment trust, corporation, limited liability company with a corporation as a member, or management of a mobilehome park and (2) the tenant has been provided a written notice of the exemption “in the rental agreement” using prescribed statutory language. (Civ. Code, § 1946.2, subd. (e)(8).) While the Complaint alleges that it meets the first requirement, it does not expressly allege that written notice of the exemption was provided in the rental agreement. (See Complaint, p. 2, ll. 20–28.)

The omission of this allegation is understandable, given that the Complaint admits the rental agreement was oral. (Complaint, at p. 2, ll. 11–13.) It nonetheless appears an attempt to cure the absence of written notice was made by altering the rental agreement’s terms to include the written notice pursuant to Civil Code, section 827, which allows a landlord to change the terms of a lease for a periodic tenancy “upon giving notice in writing to the tenant, in the manner prescribed by Section 1162 of the Code of Civil Procedure.” (Civ. Code, § 827, subd. (a)(1).) The written notice of termination includes a paragraph stating that the terms of the subject tenancy were amended to include the written notice of exemption, effective thirty days after service. (Complaint, exh. A, at p. 1 [also reciting the tenancy is month-to-month].)

Taking all the Complaint’s allegations as true, however, it is indisputable that, at the time the notice of termination was served, the property was not exempt from the requirements of Civil Code, section 1946.2, because the lease did not yet include the written notice of the subdivision (e)(8) exemption. Thus, the notice of termination was required to set forth just cause for terminating the tenancy. (See Civ. Code, § 1946.2, subd. (a).) The notice of termination of tenancy on which the Complaint’s cause of action is based does not do so. (See Complaint, exh. A, at pp. 1–2.) Thus, in serving the notice without a statement of just cause, Carlotta failed to comply with a provision of Civil Code, section 1946.2. “An owner’s failure to comply with any provision of this section shall render the written termination notice void.” (Civ. Code, § 1946.2, subd. (g).) The notice of termination is therefore void.

Service of a valid notice to quit is an essential prerequisite and element of an unlawful detainer cause of action. (*Borsuk v. Appellate Division of Superior Court* (2015) 242 Cal.App.4th 607, 611.) The notice must be in strict compliance with statutory requirements. (*Stancil v. Superior Court* (2021) 11 Cal.5th 381, 394–395.) Because proper service of a valid notice is an element of the cause of action, defects in the notice and service thereof are subject to demurrer. (*Attenello v. Basilious* (2022) 88 Cal.App.5th Supp. 1, 7–8; see Code of Civ. Proc., § 1166, subd. (a)(5) [complaint must allege method of service].)

Because the Complaint does not allege proper service of a valid notice, it fails to state a cause of action for unlawful detainer. And because the notice of termination is void, there is no manner in which the Complaint may be amended. Accordingly, once sufficient proof of proper notice is provided, the demurrer will be sustained without leave to amend.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim* (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

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